



File No.: EXP202400903

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on December 15, 2023. The complaint is directed against TERRA, BRASA Y MAR, S.L. with NIF B13953401 (hereinafter, the respondent). The reasons for the complaint are as follows: The complainant states that on December 13, 2023, their mobile phone number was added, without prior consent, to a WhatsApp group created by a responsible person from the respondent, along with several individuals unknown to them, to promote a New Year's Eve menu offered by the respondent. They believe that this action is contrary to data protection regulations as it was done without their consent and exposes their phone number to third parties, namely the other individuals included in the aforementioned group.

They indicate that they pointed out the irregularity in the group and left the group. Along with the complaint, they provide screenshots of the group to which their phone number was allegedly added. From the provided screenshots, it is evident:

- That the name of the group is "A noche vieja TerraBrasayMar."
- The complainant was added to the group by the same person who created it.
- The initial message sent in the group stated:

"Terra&Nochevieja; 23/24. Great gala party with a great dinner, cotillion, and many surprises for an unforgettable night. (...)

Dance, cotillion, and a premium cocktail. 140 euros per person."

- The complainant sent two messages at 18:48 demanding to know the reason for their inclusion in a group without their consent.
- One of the group participants sent a message at 18:49 asking: "(...)"

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SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on January 18, 2024, as evidenced by the acknowledgment of receipt in the file. No response has been received to this forwarding letter.

THIRD: On March 15, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: According to the report obtained from the AXESOR tool, the entity TERRA, BRASA Y MAR, S.L. (...) was established in 2023, with a share capital of ***AMOUNT.1, whose activity is the provision of prepared meals for events.

FIFTH: On October 15, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified on October 21, 2024, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts constituting the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

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In view of all the actions taken by the Spanish Agency for Data Protection in the present procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: The mobile phone number of the complainant was incorporated, without their consent and along with that of a plurality of individuals, into a WhatsApp group named “A noche vieja TerraBrasayMar.”

SECOND: The first message sent by the creator of the group promoted the celebration of New Year's Eve at the establishment TERRA, BRASA Y MAR, informing, among other aspects, of the menu that would be served and its price.

THIRD: The main activity of TERRA, BRASA Y MAR, S.L is the provision of prepared meals for events.

FOURTH: TERRA, BRASA Y MAR, S.L. has been identified as the data controller.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4.1 of the GDPR defines "personal data" as “any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or several specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;” The same article establishes the definition of “processing” as any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction;

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there was

processing of personal data, since the creation of a messaging group such as WhatsApp includes, among other processes, the collection and dissemination of personal data of natural persons, such as: phone number or the profile name of their account in case the contact is not saved in the device's address book.

Furthermore, the respondent carried out this processing activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR: which defines it as the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; if Union or Member State law determines the purposes and means of processing, the data controller or the specific criteria for its designation may be established by Union or Member State law.

III

Obligation Breached. Lawfulness of Processing.

The processing indicated constitutes a violation of Article 6.1 of the GDPR, lawfulness of processing, which provides:

“1. Processing shall be lawful only if and to the extent that at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

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- f) the processing is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that those interests do not override the interests or the fundamental rights and freedoms of the data subject requiring the protection of personal data, particularly when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

On the other hand, Recital 40 of the GDPR states:

“For processing to be lawful, personal data must be processed with the consent of the data subject or on some other legitimate basis established in accordance with law, whether in this Regulation or under another law of the Union or of the Member States to which this Regulation applies, including the necessity of complying with a legal obligation to which the data controller is subject or the necessity of performing a contract to which the data subject is party or for the purpose of taking steps at the request of the data subject prior to entering into a contract.”

Also, Article 4 of the GDPR, Definitions, in its paragraph 11, states:

“11) ‘consent of the data subject’: any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which the data subject, either by a statement or by a clear affirmative action, signifies agreement to the processing of personal data relating to them.”

In the case analyzed, the respondent lacked legitimacy for the processing consisting of including the claimant's phone number in a WhatsApp group, without the claimant's consent or any of the other bases for legitimizing the processing provided for in the aforementioned Article 6.

Therefore, it is considered that the conduct of the respondent violates the principle of lawfulness enshrined in Article 6.1 of the GDPR.

This is evident from the screenshots showing the confusion of the participants, with several of them

asking why they were included in that group without their consent. Furthermore, one participant raises the question of who created that group of 200 people, indicating that the number of participants was considerable.

The lack of diligence displayed by the respondent in fulfilling the obligations imposed by personal data protection regulations was, therefore, evident. A diligent compliance with the principle of lawfulness in the processing of personal data requires that the processing be based on one of the grounds provided for in Article 6 of the GDPR, which, in the case analyzed, means that it must be able to demonstrate that the data subject consented to the collection of their personal data or that it was based on a prevailing legitimate interest and to exercise reasonable diligence essential to substantiate that point. Failing to act in this way would empty the principle of lawfulness of its content.

In accordance with the evidence available in this resolution of the sanctioning procedure, since the respondent has not demonstrated that the processing of the data can be based on one of the lawful grounds provided for in Article 6.1 of the GDPR, it is considered that the known facts constitute an infringement, attributable to the respondent, for violation of Article 6.1 of the GDPR.

IV

Classification and qualification of the infringement

The aforementioned infringement of Article 6.1 of the GDPR constitutes one of the infringements classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

For its part, the LOPDGDD in its Article 71, Infringements, states:

“Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 72 “Very serious infringements” of the LOPDGDD indicates:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall be subject to a three-year limitation period:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.”

V

Sanction

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In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation referred to in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm suffered;

b) the intentionality or negligence in the infringement;

- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures referred to in Article 58, paragraph 2, have previously been ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.

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- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

In this case, considering the seriousness of the infringement, especially taking into account the consequences that its commission causes to the affected party, the imposition of a fine would be appropriate.

The fine imposed must be, in each individual case, effective, proportionate, and deterrent, in accordance with the provisions of Article 83.1 of the GDPR.

Considering the above, it is deemed that the balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 6.1 of the GDPR, allows for the setting of an administrative fine of 500 euros.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on TERRA, BRASA Y MAR, S.L., with NIF B13953401, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 500 euros.

SECOND: TO NOTIFY this resolution to TERRA, BRASA Y MAR, S.L.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

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Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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